DRAFT RESOLUTION MSC.199(80)
(adopted on 16 May 2005)
ADOPTION OF AMENDMENTS TO PROVISION OF RADIO
SERVICES FOR THE GLOBAL MARITIME DISTRESS AND

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SOURCE: MSC.199(80).pdf
NAVTEX transmitter.
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DRAFT RESOLUTION MSC.199(80)
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ADOPTION OF AMENDMENTS TO PROVISION OF RADIO
SERVICES FOR THE GLOBAL MARITIME DISTRESS AND
SAFETY SYSTEM (GMDSS) (RESOLUTION A.801(19))DRAFT RESOLUTION MSC.199(80)
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SOURCE: MEPC.200(62).pdf
RESOLUTION MEPC.200(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO
THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF
POLLUTION FROM SHIPS, 1973RESOLUTION MEPC.200(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO
THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF
POLLUTION FROM SHIPS, 1973
(Special Area Provisions and the Designation of the Baltic Sea as a Special Area under
MARPOL Annex IV)
THE MARINE ENVIRONMENT PROTECTION COMMITTEE,
RECALLING Article 38(a) of the Convention on the International Maritime Organization
concerning the functions of the Marine Environment Protection Committee (the Committee)
conferred upon it by international conventions for the prevention and control of marine
pollution,
NOTING article 16 of the International Convention for the Prevention of Pollution from
Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the Protocol
of 1978 relating to the International Convention for the Prevention of Pollution from
Ships, 1973 (hereinafter referred to as the "1978 Protocol") which together specify the

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of 1978 relating to the International Convention for the Prevention of Pollution from
Ships, 1973 (hereinafter referred to as the "1978 Protocol") which together specify the
amendment procedure of the 1978 Protocol and confer upon the appropriate body of the
Organization the function of considering and adopting amendments to the 1973 Convention,
as modified by the 1978 Protocol (MARPOL 73/78),
HAVING CONSIDERED draft amendments to Annex IV of MAR POL 73/78,

1. ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the amendments to Annex IV of MARPOL 73/78, the text of which is set out at annex to the present resolution;
2. DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that the amendments shall be deemed to have been accepted on 1 July 2012 unless, prior to that date, not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet, have communicated to the Organization their objection to the amendments;
3. INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of

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constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet, have communicated to the Organization their objection to the amendments;
3. INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of the 1973 Convention, the said amendments shall enter into force on 1 January 2013 upon their acceptance in accordance with paragraph 2 above;
4. REQUESTS the Secretary-General, in conformity with article 16(2)(e) of the 1973 Convention, to transmit to all Parties to MAR POL 73/78 certified copies of the present resolution and the text of the amendments contained in the Annex;
5. REQUESTS FURTHER the Secretary-General to transmit to the Members of the Organization which are not Parties to MAR POL 73/78 copies of the present resolution and its Annex .
RESOLUTION MEPC.200(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 2 -
ANNEX
AMENDMENTS TO MARPOL ANNEX IV
1 New paragraphs 5bis, 7bis, and 7ter are added to regulation 1:
"5bis Special area means a sea area where for recognized technical reasons in

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SOURCE: MEPC.200(62).pdf
POLLUTION FROM SHIPS, 1973- 2 -
ANNEX
AMENDMENTS TO MARPOL ANNEX IV
1 New paragraphs 5bis, 7bis, and 7ter are added to regulation 1:
"5bis Special area means a sea area where for recognized technical reasons in relation to its oceanographical and ecological condition and to the particular character of its traffic the adoption of special mandatory methods for the prevention of sea pollution by sewage is required.
The special areas are:
.1 the Baltic Sea area as defined in regulation 1.11.2 of Annex I; and
.2 any other sea area designated by the Organization in accordance with criteria and procedures for designation of special areas with respect to prevention of pollution by sewage from ships.
7bis A passenger means every person other than:
.1 the master and the members of the crew or other persons employed or engaged in any capacity on board a ship on the business of that ship; and

.2 a child under one year of age.
7ter A passenger ship means a ship which carries more than 12 passengers.
For the application of regulation 11.3, a new passenger ship is a passenger ship:
.1 for which the building contract is placed or, in the absence of a

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7ter A passenger ship means a ship which carries more than 12 passengers.
For the application of regulation 11.3, a new passenger ship is a passenger ship:
.1 for which the building contract is placed or, in the absence of a
building contract, the keel of which is laid, or which is in a similar
stage of construction, on or after 1 January 2016; or
.2 the delivery of which is two years or more after 1 January 2016.
An existing passenger ship is a passenger ship which is not a new passenger ship."
2 New paragraph 2 is added to regulation 9:
"2 By derogation from paragraph 1, every passenger ship which, in
accordance with regulation 2, is required to comply with the provisions of this Annex,
and for which regulation 11.3 applies while in a special area, shall be equipped with
one of the following sewage systems:
RESOLUTION MEPC.200(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO
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POLLUTION FROM SHIPS, 1973- 3 -
.1 a sewage treatment plant which shall be of a type approved by the
Administration, taking into account the standards and test methods

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THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF
POLLUTION FROM SHIPS, 1973- 3 -
.1 a sewage treatment plant which shall be of a type approved by the
Administration, taking into account the standards and test methods
developed by the Organization, or
.2 a holding tank of the capacity to the satisfaction of the
Administration for the retention of all sewage, having regard to the
operation of the ship, the number of persons on board and other
relevant factors. The holding tank shall be constructed to the
satisfaction of the Administration and shall have a means to
indicate visually the amount of its contents."
3 Regulation 11 is rep/aced by the fol/owing:
Regulation 11
Discharge of sewage
"A Discharge of sewage from ships other than passenger ships in al/ areas
and discharge of sewage from passenger ships outside special areas
1 Subject to the provisions of regulation 3 of this Annex, the discharge of
sewage into the sea is prohibited, except when:
.1 the ship is discharging comminuted and disinfected sewage using
a system approved by the Administration in accordance with
regulation 9.1.2 of this Annex at a distance of more than 3 nautical

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sewage into the sea is prohibited, except when:
.1 the ship is discharging comminuted and disinfected sewage using a system approved by the Administration in accordance with regulation 9.1.2 of this Annex at a distance of more than 3 nautical miles from the nearest tand, or sewage which is not comminuted or disinfected at a distance of more than 12 nautical miles from the nearest land, provided that, in any case, the sewage that has been stored in holding tanks, or sewage originating from spaces containing living animals, shall not be discharged instantaneously but at a moderate rate when the ship is en route and proceeding at not less than 4 knots; the rate of discharge shall be approved by the Administration based upon standards developed by the Organization ; or
.2 the ship has in operation an approved sewage treatment plant which has been certified by the Administration to meet the operational requirements referred to in regulation 9.1.1 of this Annex, and the effluent shall not produce visible floating solids nor cause discoloration of the surrounding water.
2 The provisions of paragraph 1 shall not apply to ships operating in the

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